TRUSTEES FOR THE TIME BEING OF OASIS OF LOVE TRUST
versus
ANDREW NJENJE
and
IBERT CHRISTMAS
and
OWEN BANDAMA
and
KENNETH KONDANI
and
KUDAKWASHE MANOTI

HIGH COURT OF ZIMBABWE
TSANGA J
HARARE; 24 & 25 February 2026

Urgent Chamber Application

N G Maphosa for Applicant
L Matapura & T J Mafongoya for Respondents

TSANGA J:

Introduction

This is an urgent application brought by the Trustees of a church Trust seeking a provisional order interdicting the church elders from selling immovable property known as Stand 1210 Bluffhill Township of Stand 1180 Bluffhill Township belonging to the Trust, or any other property, without the Trustees' consent. The application raises a narrow but significant issue: whether church elders may dispose of property registered in the name of a Trust when the Trust deed expressly vests the power to buy and sell immovable property in the Trustees. In their notice of opposition, the church elders argue that, as spiritual and administrative leaders of the church community, they are entitled to manage church affairs, including disposal of property. It is common cause that a Trust was lawfully constituted for the benefit of all congregants of the church and other various named interest groups. The immovable property in question is registered in the name of the Trust. The Trust Deed also provides that the Trustees are empowered "to buy and sell immovable property by public auction or private treaty." It is not in dispute that there is an advert through Robert Root

Estate Agents to sell the property. The Trustees have not consented to such sale. The Trustees contend that it is the church elders who have initiated steps to sell the property and that the intended conduct is unlawful and ultra vires the Trust Deed. They seek interim relief preventing any sale pending final determination of the parties' rights.

Preliminary Objections

At the hearing, Mr *Matapura* for the respondents, raised several preliminary issues challenging urgency. He stated that the respondents deny giving any mandate to sell the property and distance themselves from the advertisement placed by Robert Root. He contended that the allegation of sale is speculative and contrived. He also highlighted that the Board resolution relied upon by the Trustees does not expressly mention the intended sale of the property, but focuses instead on restraining interference with the Trust's administration. He also pointed to procedural and technical irregularities with the application in that the application refers to a now non-existent form for filing any opposition in light of the amended High Court Rules of 2021. The time allowed for response on the form used was ten days which is the ordinary dies for a normal application, suggesting lack of urgency. The certificate of urgency also predated the founding affidavit by two days.

Ms *Maphosa* maintained that instructions were indeed given to estate agents to market the property by the respondents. On procedural irregularities, the reference to an outdated or incorrect form was said to be plainly a clerical error. Her explanation on the signing of the certificate of urgency ahead of the affidavit was attributed to the lawyer who signed having gone through the affidavit and determined that the matter was urgent.

The respondents' denial of a mandate to sell raises a dispute of fact, but it does not in itself extinguish urgency. If anything, it underscores the need for interim clarity pending determination of the parties' rights. Given that immovable property, once transferred to a *bona fide* purchaser, may be difficult to recover, the potential prejudice is self-evident.

The absence of explicit reference to a sale in the Board resolution is not decisive. The resolution appears to have been framed broadly to address interference with Trust property and administration. That does not negate evidence suggesting marketing of the property.

Such an irregularity does not go to the substance of urgency and cannot justify dismissal of the application. The explanation regarding the certificate of urgency that counsel considered the draft founding affidavit before it was formally commissioned is plausible. The

fact that the certificate predates the commissioned affidavit by two days does not, without more, render the urgency artificial.

More weight attaches to the argument concerning the ten-day response period. Ordinarily, urgent applications truncate the dies for filing opposing papers. The allowance of the standard period is indicative of some inconsistency with extreme urgency. However, urgency exists in degrees. A matter may justify preferential allocation on the roll even if the time frames are not drastically abbreviated.

The threatened sale of immovable property belonging to a Trust constitutes a matter capable of giving rise to irreparable prejudice. The marketing of the property creates a reasonable apprehension that disposal could occur before the matter is determined in the ordinary course.

While certain procedural aspects of the application are inelegant particularly the ordinary response period they do not, individually or cumulatively, demonstrate that urgency was self-created or contrived. The question is not whether the procedure was perfectly urgent in form, but whether, substantively, delay would defeat the purpose of the application. Accordingly, I am satisfied that the applicants have established sufficient urgency to warrant the matter being heard on an urgent basis. The preliminary points on urgency and related issues are therefore dismissed.

On the merits

On the merits, Ms *Maphosa* emphasised that the property was bought in the name of the Trust and that the Trust has always acted through the Trustees. With evidence of a sale advert, she insisted there was a well-grounded apprehension of harm. There was said to be no alternative remedy as the parties had failed to agree. The balance of convenience was therefore said to favour that the provisional order be granted, which essentially seeks to stop the church elders from selling the property without consulting the trustees.

Mr *Matapura*, on the other hand, did not dispute that the property is owned by the Trust. However, he disputed that there was any likely harm to be suffered in the absence of real evidence to support the sale and maintained that there was no proof that the elders cited have anything to do with the sale.

Ms *Maphosa,* in response, further emphasised that the respondent's opposing affidavit is fundamentally grounded in the belief that they have control as church elders and that they are entitled to deal with the trust asset as they wish. They had in fact been various failed

attempts to settle the matter by the parties. She opined that there would be no real prejudice if the provisional order was granted as it is a provisional order with a return date.

The Law

It is trite that a Trust is a separate legal arrangement administered in accordance with its Trust deed. Trustees derive their powers strictly from the Trust instrument. Where property is vested in a Trust, control over that property is governed by the Trust deed and applicable trust law.

As stated in *Gold Mining & Minerals Development Trust* v *Zimbabwe Miners' Federation* 2006 (1) ZLR 174

> "A trust, in the wide sense, is any legal arrangement by which one person is to administer property, whether as an office holder or not, for another or for some impersonal object. In the narrow sense, a "trust" exists when the creator of the trust hands over or is bound to hand over the control of an asset which, is to be administered by another for the benefit of some person other than the trustee or for some impersonal object."

See also similar remarks in *Mafirambudzi Family Trust* v *Madzingira & Ors* HH-338-14; *Musemwa & Ors* v *Gwinyai Family Trust & Ors* HH-136-16.

Church governance structures, including elders, do not override the legal authority vested in trustees unless the Trust deed expressly provides otherwise. What is to be determined is whether the Trustees have established the requirements for a provisional interdict. For a provisional interdict, an applicant must establish:

- A *prima facie* right, though open to some doubt;
- A well-grounded apprehension of irreparable harm;
- The absence of an adequate alternative remedy; and
- That the balance of convenience favours the granting of relief.

Analysis

(a) Prima Facie Right

As pointed out it is not in dispute that the property is registered in the name of the Trust. The Trustees therefore established a *prima facie* right grounded in the Trust deed. Ordinarily since the property is owned by the Trust, in reality they have a clear right. However, against a back drop where they are said to have over-reached in tinkering with the

Trust Deed still they have satisfactorily shown that they have a right even if according to the respondents, open to some doubt.

In reality, where a Trust has been constituted and property vested in it, the Trustees alone exercise fiduciary control in accordance with the Trust Deed. Any purported sale by non-trustees would be ultra vires and invalid. The governance structures of the church cannot override the express provisions of the Trust instrument. The elders' spiritual or administrative leadership within the church does not equate to legal authority over Trust property.

Also noted from the Trust Deed itself is that it expressly grants the Trustees the authority "to buy and sell immovable property by public auction or private treaty." That power is clear and unambiguous. No provision has been placed before me conferring similar authority upon the church elders. In the absence of such provision, the elders have no legal mandate to dispose of Trust property.

(b) Irreparable Harm

The advert itself as argued on behalf of the applicants points to imminent harm. Immovable property is unique. Once sold and transferred to a third party, restoration may be legally and practically impossible, particularly where a bona fide purchaser acquires the property. If the sale proceeds without lawful authority, the Trust would suffer harm that cannot easily be reversed. Damages would not be an adequate remedy, especially given that the Trust exists for the collective benefit of congregants. The apprehension of irreparable harm is therefore well-founded.

(c) Alternative Remedy

There is no satisfactory alternative remedy. Once transfer occurs, the Trustees' powers would be rendered nugatory. An action for damages would not restore control over the property.

(d) Balance of Convenience

The balance of convenience favours preservation of the *status quo*. In reality and judging from the order as a whole, it appears that there are power struggles within the church. Preventing a sale pending final determination does not extinguish the possibility of a lawful sale, it merely ensures that any such sale complies with the Trust deed.

Conclusion

The Trustees have satisfied all the requirements for the granting of a provisional interdict. The Provisional Order is therefore granted as prayed.

TSANGA J……..

Messrs Sawyer & Mkushi, Applicant's Legal Practitioners
Mafongoya & Matapura, 1st-5th Respondents' Legal Practitioners